

COMMERCIAL LEASE AGREEMENT BETWEEN HORIZON SYSTEMS CORP. AND PRIME GROUP INC.

Between: **Horizon Systems Corp.** (Lessor) and **Prime Group Inc.** (Lessee)

Effective Date: 2022-06-01

Termination Date: 2024-06-01

Governing Law: the laws of England and Wales

1. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

2. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

3. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Horizon Systems Corp. shall process personal data of Prime Group Inc.'s employees or customers only as necessary to perform the Services and strictly in accordance with Prime Group Inc.'s written instructions. Horizon Systems Corp. shall implement appropriate technical and organisational measures to protect such data.

3.99. Non-Compete with No Geographic Limit

Prime Group Inc. agrees that during the term of this Agreement and for a period of ten (10) years thereafter, Prime Group Inc. shall not, directly or indirectly, engage in any business activity anywhere in the world that competes in any manner with the business of Horizon Systems Corp. as conducted at any time during the term.

4. Subcontracting

Horizon Systems Corp. shall not subcontract any material part of the Services without the prior written consent of Prime Group Inc.. Where subcontracting is permitted, Horizon Systems Corp. shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 1 and Clause 1.

5. Term

This Agreement shall commence on the Effective Date, 2022-06-01, and shall continue until 2024-06-01, unless earlier terminated in accordance with Clause 1. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

6. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

7. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

8. Insurance

Horizon Systems Corp. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 1,56,00,000 (Rupees One crore, fifty-six lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 1,56,00,000 (Rupees One crore, fifty-six lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Horizon Systems Corp. shall provide evidence of such insurance upon request.

9. Termination

Either Party may terminate this Agreement by giving 30 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Prime Group Inc. shall pay for all Services rendered up to the date of termination.

10. Scope of Services

Horizon Systems Corp. shall provide to Prime Group Inc. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

11. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

12. Indemnification

Horizon Systems Corp. shall indemnify, defend, and hold harmless Prime Group Inc. and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Horizon Systems Corp.'s breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

13. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 1,56,00,000 (Rupees One crore, fifty-six lakh Only). This limitation does not apply to obligations arising from Clause 10 or indemnification obligations.

14. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

15. Intellectual Property

All intellectual property rights in deliverables created specifically for Prime Group Inc. under this Agreement shall vest in Prime Group Inc. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Horizon Systems Corp. grants Prime Group Inc. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Prime Group Inc.'s internal business purposes.

16. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

IN WITNESS WHEREOF

Lessor

Horizon Systems Corp.

Signature: _____

Name: _____

Title: _____

Date: _____

Lessee

Prime Group Inc.

Signature: _____

Name: _____

Title: _____

Date: _____